

31 July 2025

ICC International Court of Arbitration
ICC Secretariat

Re: Case No. 29534/ICA3 - Claimant's Position on Arbitrator Qualifications and Nationality.

Dear Members of the Secretariat,

We respond to your correspondence dated 24 July 2025 regarding arbitrator qualifications and the proposal for an Austrian national as sole arbitrator, as well as Respondents' letter dated 21 July 2025 which challenges the applicable governing law and seeks to recharacterize the dispute.

1. Dispute characterization

Respondents mischaracterize this dispute. Claimant's claims arise under the SHA, not the SPA. The dispute concerns Put Option enforcement under SHA Clause 4.6(d) following Events of Default under SHA Clause 6.1.

Warranty analysis forms part of SHA breach assessment, not standalone SPA claims. The March 2023 balance sheet warranty predicates the Put Option valuation mechanism within the SHA framework. Respondents' attempt to fragment SHA claims into separate SPA proceedings contradicts the unified dispute resolution structure the parties agreed upon.

SHA Clause 10.2 governs this dispute. This clause has been extensively negotiated and finally agreed upon. Warranty-related analysis occurs within SHA breach determination, not as independent SPA claims subject to VIAC proceedings.

2. Arbitrator qualification requirements

English law expertise remains fundamental. The SHA governs this dispute under English law. Put Option enforcement, shareholder remedies, and material breach assessment require substantive English commercial law expertise.

Austrian law knowledge serves only a supplementary role limited to mandatory corporate law provisions affecting the joint venture structure. This secondary requirement cannot supersede the primary English law governance framework.

The dispute's financial complexity demands an arbitrator experienced in international commercial arbitration involving joint venture disputes, shareholder agreements, and EBITDA-based valuation

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mechanisms. Such expertise proves essential for adjudicating Put Option enforcement and related financial remedy calculations.

Respondents' emphasis on Austrian law primacy is an attempt to predetermine jurisdictional and governing law issues that fall within the tribunal's authority under Article 6 of the ICC Rules; therefore, it should not be countenanced.

3. Jurisdictional process protection

Article 6 of the ICC Rules reserves jurisdiction determination for the appointed tribunal. Respondents cannot circumvent this fundamental principle by engineering arbitrator selection to predetermine substantive jurisdictional outcomes.

Arbitrator qualifications must reflect the dispute's governing law framework, not Respondents' preferred legal conclusions. The Court's appointment authority under Article 12(3) cannot be sought to be compromised in this manner to achieve substantive legal determinations before tribunal constitution.

Respondents conflate arbitrator qualification requirements with substantive jurisdiction analysis, thereby undermining the tribunal's kompetenz-kompetenz authority and prejudging issues reserved for tribunal determination.

The Court should appoint an arbitrator qualified to adjudicate SHA disputes under English law, preserving the tribunal's authority to determine jurisdictional questions on their merits.

4. Arbitrator nationality

Claimant objects to appointing an Austrian national as sole arbitrator. Article 13(5) of the ICC Rules establishes the principle that arbitrators should be of different nationality than the parties, with exceptions only in "suitable circumstances".

The present circumstances render an Austrian arbitrator inappropriate. Respondents have consistently challenged applicable law and jurisdiction from the outset, while simultaneously advocating for Austrian law primacy and Austrian arbitrator appointment. This coordinated approach raises legitimate concerns regarding arbitrator neutrality on the very issues Respondents seek to contest.

These exacerbated circumstances distinguish this case from situations where Austrian nationality might otherwise have been suitable and acceptable under Article 13(5).

An arbitrator from a neutral jurisdiction better serves the dispute's international character and ensures impartial adjudication of the governing law framework. This approach aligns with Article 13(5)'s underlying principle of arbitrator independence from party influences.

Accordingly, the Court should appoint a non-Austrian arbitrator possessing the English law expertise this dispute requires.

5. Urgency and expedition

Put Option enforcement demands immediate tribunal constitution. The SHA's valuation mechanism presupposes prompt enforcement to preserve the integrity of EBITDA-based calculations and prevent further changes to the company's financial position during prolonged proceedings.

Delayed tribunal constitution compromises the Put Option's commercial purpose- . Ongoing business operations naturally involve asset and liability reallocations that could affect the valuation baseline established for enforcement of the Put Option. Such evolving financial circumstances risk undermining the valuation framework the parties established, potentially affecting both the accuracy of financial assessments and the effectiveness of Claimant's contractual remedies.

Respondents' pattern of jurisdictional challenges and procedural objections creates systematic delays. Given the established course of conduct that precipitated this dispute, continued postponement risks further prejudice to Claimant's position while operational and financial changes occur beyond Claimant's oversight or control.

The Court should proceed expeditiously with arbitrator appointment to prevent continued commercial harm and ensure effective dispute resolution consistent with the parties' agreed timeframes.

6. Request for appointment

The Court possesses clear authority under Article 12(3) to appoint the sole arbitrator. This authority operates independently of parties' predisposition on substantive legal issues, including governing law and jurisdiction.

Claimant respectfully requests the Court proceed with arbitrator appointment based on the qualifications outlined in the Request for Arbitration: substantive English law expertise, international commercial arbitration experience in joint venture and shareholder disputes, and financial sophistication sufficient for EBITDA-based valuation analysis.

Further consultation on these matters serves no genuine procedural need and extends delays that prejudice the Put Option enforcement mechanism the parties negotiated. The issues raised by Respondents do not require additional party input for the Court's appointment decision under Article 12(3).

The Court should exercise its appointment authority without further procedural diversions to ensure prompt and effective dispute resolution.

Claimant trusts the Court will appoint an appropriately qualified arbitrator to adjudicate this SHA dispute in accordance with its governing law framework and the highest standards of international arbitration practice.

Yours faithfully,



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